

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #04	CCRB Case #: 202007357	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/17/2020 8:05 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 75		
Date/Time CV Reported Sun, 10/18/2020 12:01 AM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 11/06/2020 11:21 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Marc Whirl	03696	937726	075 PCT
2. DTS James Argila	03497	946752	075 PCT
3. POF Jeanette Rodriguez	03555	961193	075 PCT
4. POM Sean Keegan	12338	954994	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Marc Whirl	Abuse: Detective Marc Whirl stopped § 87(2)(b)	A . Substantiated
B . DTS James Argila	Abuse: Detective James Argila stopped § 87(2)(b)	B . Substantiated
C . POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez stopped § 87(2)(b)	C . Substantiated
D . POM Sean Keegan	Abuse: Police Officer Sean Keegan stopped § 87(2)(b)	D . Substantiated
E . DTS Marc Whirl	Abuse: Detective Marc Whirl frisked § 87(2)(b)	E . Substantiated
F . POM Sean Keegan	Abuse: Police Officer Sean Keegan questioned § 87(2)(b)	F . Unsubstantiated
G . POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez interfered with § 87(2)(b) use of a recording device.	G . Substantiated
H . POM Sean Keegan	Abuse: Police Officer Sean Keegan refused to provide his shield number to § 87(2)(b)	H . Substantiated
I . DTS James Argila	Abuse: Detective James Argila refused to provide his shield number to § 87(2)(b)	I . Substantiated
J . POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez refused to provide her shield number to § 87(2)(b)	J . Substantiated
K . DTS Marc Whirl	Abuse: Detective Marc Whirl failed to provide § 87(2)(b) with a business card.	K . Substantiated
L . DTS James Argila	Abuse: Detective James Argila failed to provide § 87(2)(b) with a business card.	L . Substantiated
M . POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez failed to provide § 87(2)(b) with a business card.	M . Substantiated
N . POM Sean Keegan	Abuse: Police Officer Sean Keegan failed to provide § 87(2)(b) with a business card.	N . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On October 18th, 2020, § 87(2)(b) filed this complaint with the CCRB via email.

On October 17th, 2020, at approximately 8:05 PM, Detective Marc Whirl, Detective James Argila, Police Officer Jeanette Rodriguez, and Police Officer Sean Keegan (all from the 75th Precinct) stopped § 87(2)(b) in front of § 87(2)(b) in Brooklyn (**Allegation A-D: Abuse of Authority, substantiated**). Det. Whirl frisked § 87(2)(b) (**Allegation E: Abuse of Authority, substantiated**). PO Keegan questioned § 87(2)(b) about whether he possessed marijuana (**Allegation F: Discourtesy, unsubstantiated**). PO Rodriguez interfered with § 87(2)(b) use of a recording device (**Allegation G: Abuse of Authority, substantiated**). PO Keegan, Det. Argila, and PO Rodriguez did not provide their shield numbers to § 87(2)(b) (**Allegations H-J: Abuse of Authority, substantiated**). Det. Whirl, Det. Argila, PO Rodriguez and PO Keegan did not provide business cards to § 87(2)(b) (**Allegations K-N: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

There were no arrests made or summons issued as a result of the incident.

The CCRB obtained BWC footage regarding the incident (**BR01-BR03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Marc Whirl stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Detective James Argila stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Jeanette Rodriguez stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Sean Keegan stopped § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Marc Whirl frisked § 87(2)(b)

§ 87(2)(b) (**BR04**) stated that he was walking to the deli located at the corner of Pitkin Avenue and Miller Avenue. § 87(2)(b) saw an unmarked black Nissan sedan that slowed down and seemed to follow him as he walked. § 87(2)(b) continued walking and passed by § 87(2)(b). At this location, the unmarked car stopped alongside § 87(2)(b). Det. Whirl, PO Argila, PO Rodriguez and PO Keegan got out of the unmarked car. Det. Whirl shouted at § 87(2)(b) to take his hands out of his pockets. Det. Whirl proceeded to search him by going into all his pockets with his hands and feeling the insides of the pockets.

Based on BWC footage from Det. Whirl, Det. Argila and PO Rodriguez (**BR01-03**), the investigation determined that Det. Whirl frisked § 87(2)(b) and did not search him. Thus, Allegation E is pleaded as a frisk instead of a search.

Det. Whirl (**BR05**) did not notice § 87(2)(b) at first; either PO Keegan or PO Rodriguez notified him about § 87(2)(b) presence. The officer who requested the stop did not specify what they saw that warranted a stop and they did not say anything further on the matter. Either PO Keegan or PO Rodriguez told Det. Whirl, “Yo, stop this guy and talk to him.” Det. Whirl observed a “big bulge” in the front pocket of § 87(2)(b) hoodie or windbreaker when he first noticed § 87(2)(b) from the patrol vehicle. The bulge could have been § 87(2)(b) hands put

together with his phone in his hand. § 87(2)(b) hands were in his pocket at the time, and Det. Whirl did not see § 87(2)(b) make any other movements besides walking on the sidewalk. Det. Whirl stated that since he did not know what the officer who requested the stop had seen, coupled with the fact that he saw a bulge on § 87(2)(b) person prior to stopping him, the bulge “could have been something.”

Upon approaching § 87(2)(b) Det. Whirl asked him twice to remove his hands from his pockets. § 87(2)(b) complied the second time and took both hands out of his pockets, with his cell phone visible in one of his hands. Det. Whirl proceeded to frisk the front pocket of § 87(2)(b) jacket, his waistband, and both pant legs. Det. Whirl frisked § 87(2)(b) waistband and down his pant legs because those areas are where items are commonly hidden. Det. Whirl did not remove any items from § 87(2)(b) person during the frisk, which lasted approximately five to ten seconds and was done for the safety of himself, § 87(2)(b) and the officers. Det. Whirl did not recover any contraband during the frisk.

Det. Argila (BR06) was not aware of § 87(2)(b) at first. Det. Argila was notified of § 87(2)(b) presence when either PO Keegan or PO Rodriguez directed his attention to him and said to talk to him. Det. Argila observed § 87(2)(b) walking on the sidewalk with his hands in his front jacket pockets, located near the zipper of the jacket. He observed his hands and pockets pulled down by the waistband and saw a bulge in the jacket pocket that was moving around. At that point in time, Det. Argila believed that the bulge could have been a weapon. The bulge looked elongated and pointy. Det. Argila described § 87(2)(b) demeanor as “animated,” explaining that he seemed nervous and anxious when the officers approached him.

PO Rodriguez (BR07) did not remember who drew her attention to § 87(2)(b) who was approximately one car-length away from her and other officers. PO Rodriguez smelled the odor of burnt marijuana as they were driving alongside § 87(2)(b) PO Rodriguez did not know who saw § 87(2)(b) first and did not remember who smelled the marijuana first. PO Rodriguez said out loud that she smelled marijuana. All four officers in the vehicle may have smelled the marijuana and looked at § 87(2)(b) at the same time. PO Rodriguez decided to step out of the vehicle and the other officers followed suit. PO Rodriguez noticed that § 87(2)(b) had his hands in his pockets and was holding his hands close to his stomach area. She also observed him constantly adjusting his pants, which to her meant that § 87(2)(b) either had something in his waistband or was preparing to run. PO Rodriguez initially decided to stop § 87(2)(b) because of the odor of marijuana, but then expanded this to include that § 87(2)(b) looked like he was holding something in his jacket pockets and waistband area. Furthermore, PO Rodriguez observed § 87(2)(b) walking extremely close to the cars parked on the side of the street and was suspicious due to the area being prone to car break-ins. § 87(2)(b) also looked nervous and kept looking left and right while he was walking. PO Rodriguez did not tell § 87(2)(b) that she smelled marijuana, nor did she say anything to him regarding marijuana.

PO Keegan (BR08) smelled the strong odor of marijuana at around the same time he saw § 87(2)(b) on the sidewalk. PO Keegan did not see anyone else on the block. PO Keegan noticed that § 87(2)(b) looked nervous and slowed his pace when he spotted the officers’ vehicle. PO Keegan did not recall whether he saw § 87(2)(b) smoke marijuana or consume any other substances when he saw him. PO Keegan did not remember if he was the first officer to see § 87(2)(b) or if other officers notified him to § 87(2)(b) presence, and also did not recall who made the decision to stop him. PO Keegan believed Det. Whirl was frisking § 87(2)(b) due to the officers smelling marijuana that seemed to be coming from § 87(2)(b) and was not aware of any other reason for frisking him. PO Keegan did not tell § 87(2)(b) that he smelled marijuana, nor did he say anything to him regarding marijuana.

BWC footage from PO Whirl, Det. Argila, and PO Rodriguez (BR01-03) shows PO Keegan asking § 87(2)(b) “So all you have is weed, right?” at 1:31, 1:32, and 1:34, respectively. § 87(2)(b) replied that he did not have any weed, nor did he have any guns on his person. § 87(2)(b) then asked why the officers were “doing this.” BWC footage does not capture any conversation about marijuana beyond PO Keegan’s question.

PO Keegan (BR08) stated that he smelled marijuana while he was driving with the windows down, and simultaneously saw § 87(2)(b) on the sidewalk when he turned to look out the window. § 87(2)(b) looked nervous and slowed his pace when he saw the officers’ vehicle. After exiting the vehicle, PO Keegan stood behind § 87(2)(b) and asked him if it was just marijuana he was nervous about due to what he smelled. PO Keegan asked him about marijuana only once. PO Keegan did not recall what § 87(2)(b) said in response. PO Keegan did not recall any officer recovering any contraband from § 87(2)(b) after the frisk. § 87(2)(b) continued to have a nervous demeanor and seemed frantic when Det. Whirl was patting him down. PO Keegan did not have any further conversation with § 87(2)(b) about marijuana.

PO Rodriguez (BR07) stated that around the same time she saw § 87(2)(b) and PO Keegan was driving the vehicle alongside him, she smelled the odor of burnt marijuana. PO Rodriguez did not see anyone else on the sidewalk beyond § 87(2)(b). After exiting the vehicle and standing next to § 87(2)(b), PO Rodriguez smelled the odor of marijuana allegedly coming from his mouth. PO Rodriguez did not observe § 87(2)(b) smoking or consuming any marijuana during the incident. PO Rodriguez did not speak with § 87(2)(b) about marijuana.

Det. Argila (BR06) stated that he smelled burnt marijuana after he exited the vehicle and when he was approaching § 87(2)(b). Det. Argila also stated that he could smell the odor of marijuana coming from § 87(2)(b) hands and mouth as he stood next to him. Det. Argila did not have any conversation with § 87(2)(b) about marijuana.

Det. Whirl (BR05) did not recall if he smelled marijuana when approaching or frisking § 87(2)(b). Det. Whirl did not recover any marijuana after frisking § 87(2)(b).

Patrol Guide Procedure 212-11 (BR09) states that “a common law right of inquiry is an encounter between a civilian and a uniformed member of the service conducted for the purpose of asking the civilian pointed or accusatory questions because the police officer has a “founded suspicion” that criminal activity is afoot. Upon a founded suspicion of criminality, the officer may approach a person to ask accusatory questions.”

§ 87(2)(g) It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation (G) Abuse of Authority: Police Officer Jeanette Rodriguez interfered with § 87(2)(b) use of a recording device.

§ 87(2)(b) (BR04) stated that when officers first approached him, he took out his phone and began to record the officers by positioning the phone as if he was going to take a selfie. In response, PO Rodriguez shined a flashlight at § 87(2)(b) and his cell phone in order to prevent § 87(2)(b) from recording the officers.

PO Rodriguez (BR07) stated that during the frisk, she shined her flashlight at § 87(2)(b) stomach and waistband area to identify any items that may have been there when she observed § 87(2)(b).

§ 87(2)(b) holding his hands close to his stomach and waistband. PO Rodriguez noted that § 87(2)(b) was holding his cell phone in one of his hands but did not do anything with the phone and did not appear to record the officers. PO Rodriguez denied shining her flashlight at § 87(2)(b) phone or obstructing § 87(2)(b) attempt to record the incident in any way. PO Rodriguez was shown BWC footage from Det. Argila, where she confirmed that the flash of light on the bottom left corner of the video was her turning on her flashlight to identify what was in § 87(2)(b) stomach/waistband area. PO Rodriguez was shown further footage from Det. Argila regarding her appearing to shine her flashlight at § 87(2)(b) phone when § 87(2)(b) appeared to activate the camera on his phone. PO Rodriguez stated that she did not recall doing this action before seeing the BWC footage. PO Rodriguez had no intention to interfere with any kind of recording attempt and § 87(2)(b) was free to record if he wished.

BWC footage from Det. Argila shows that at 1:02 (BR03), PO Rodriguez briefly flashes her flashlight at § 87(2)(b) and turns off her flashlight. At 1:22, § 87(2)(b) begins to record a video on his phone with the camera facing himself and Det. Whirl behind him. At 01:26, PO Rodriguez appears to shine a flashlight at § 87(2)(b) cell phone and keeps the beam of light focused on the phone and does not move the flashlight anywhere else. At 1:34, PO Rodriguez turns off her flashlight just as Det. Whirl finishes frisking § 87(2)(b).

NYPD Patrol Guide procedure 203-29 (BR10) states that officers are prohibited from intentionally blocking or obstructing cameras or other recording devices when there is no legitimate law enforcement reason to do so.

§ 87(2)(g)
§ 87(2)(b) had turned on the camera function on his phone, and it was at this point that PO Rodriguez turned on her flashlight and pointed it at the cell phone. § 87(2)(g)
It is therefore recommended that Allegation G be substantiated.

Allegation (H) Abuse of Authority: Police Officer Sean Keegan refused to provide his shield number to § 87(2)(b)

Allegation (I) Abuse of Authority: Detective James Argila refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Jeanette Rodriguez refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) (BR04) stated that as the officers got back into their vehicle, he asked about five times for the officers' shield numbers. Only Det. Whirl replied and verbally provided the information, before the vehicle drove away.

Det. Argila and PO Rodriguez (BR06-07) both stated that § 87(2)(b) did not ask any of the officers present for their shield numbers. PO Keegan (BR08) did not remember if § 87(2)(b) asked for their shield numbers. Det. Whirl (BR05) did not recall if § 87(2)(b) asked him or any other officer to provide their names or shield numbers after the frisk was over. When the frisk ended, Det. Whirl and all the officers were still standing around § 87(2)(b) and had begun to walk back to their vehicle.

BWC from Det. Whirl (BR01) does not capture § 87(2)(b) asking any officer for their shield numbers. At 1:43, Det. Whirl turns around and walks back to the police vehicle, along with all the other officers. As they are walking toward the vehicle, § 87(2)(b) asks Det. Whirl to "come here." Det. Whirl says "nah" in response. § 87(2)(b) repeats "come here, please." The officers

do not respond to § 87(2)(b) and the video ends. BWC footage from PO Rodriguez and PO Argila (BR02-03) is the same as footage from PO Whirl and does not capture § 87(2)(b) asking any officer for their shield numbers. In BWC footage from PO Rodriguez at 01:46, Det. Whirl and PO Keegan are seen furthest away from § 87(2)(b) as the officers are walking back to their vehicle, and PO Rodriguez and Det. Argila are right next to § 87(2)(b).

Det. Whirl, Det. Argila, PO Keegan, and PO Rodriguez all approached § 87(2)(b). § 87(2)(b) stated that he asked the officers for their shield numbers and only Det. Whirl provided his shield number. § 87(2)(b) provided Det. Whirl's shield number to the investigation.

§ 87(2)(g) It is therefore recommended that Allegations H-J be closed as substantiated.

Allegation (K) Abuse of Authority: Detective Marc Whirl failed to provide § 87(2)(b) with a business card.

Allegation (L) Abuse of Authority: Detective James Argila failed to provide § 87(2)(b) with a business card.

Allegation (M) Abuse of Authority: Police Officer Jeanette Rodriguez failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Police Officer Sean Keegan failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) did not ask for or receive a business card from any of the officers. § 87(2)(b) only asked the officers for their badge numbers.

BWC footage from Det. Whirl, Det. Argila, and PO Rodriguez (BR01-03) does not show any officer offering § 87(2)(b) a business card. All three officers' footage shows the officers walking back to their vehicle and driving off. § 87(2)(b) does not ask any officer for a business card.

PO Rodriguez (BR07) stated that § 87(2)(b) did not request any business cards, nor did officers provide any business cards to § 87(2)(b). Det. Argila (BR06) did not remember if § 87(2)(b) asked him or the other officers for business cards. Det. Argila stated that he was not sure if he had business cards on his person to hand out during the incident, as he had run out and was in the process of ordering more. PO Keegan (BR08) did not recall if he or other officers provided their business cards to § 87(2)(b) and stated that § 87(2)(b) did not ask any officers for their business cards. Det. Whirl (BR05) did not hear § 87(2)(b) ask any officer to provide a business card and did not recall if he had any business cards on his person during the incident.

NYC Administrative Code 14-174 (BR11) states that an officer must offer a business card to civilians at the conclusion of a law enforcement activity that does not result in an arrest or summons. An officer must offer to provide their name, rank, shield number and command in written form if such officer does not have an adequate number of business cards. If the officer is unable to provide their information in written form, the officer must provide their name, rank, shield number and command verbally and allow sufficient time for civilians to record such information.

§ 87(2)(g) It is therefore recommended that Allegations K-N be substantiated.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR14).
- Det. Whirl has been a member of service for sixteen years and has been a subject in eighteen CCRB complaints and thirty-six allegations, none of which were substantiated.
§ 87(2)(g)
- Det. Argila has been a member of service for thirteen years and has been a subject in eleven CCRB complaints and twenty-four allegations, of which two were substantiated.
 - Case #201808991 involved substantiated allegations of Abuse of Authority. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g)
- PO Rodriguez has been a member of service for five years and has been a subject in four CCRB complaints and fourteen allegations, none of which were substantiated. § 87(2)(g)
- PO Keegan has been a member of service for eight years and has been a subject in thirteen cases and thirty-seven allegations, of which four were substantiated.
 - Case #201906398 involved a substantiated allegation of Discourtesy. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
 - Case #201906894 involved substantiated allegations of Force and Discourtesy. The Board recommended charges and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On November 17th, 2021, a FOIL request was submitted to the Office of the Comptroller. Results will be attached upon receipt (BR15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 4 _____

Investigator: _____ Justin Huang _____ Investigator Huang _____ 12/06/2021 _____
Signature Print Title & Name Date

Squad Leader: _____ Raquel Velasquez _____ IM Raquel Velasquez _____ 12/06/2021 _____
Signature Print Title & Name Date

Reviewer: _____ _____ _____
Signature Print Title & Name Date